

		the petition may not be heard until at least 30 days after the date of such service. “(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code.’ “California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. “Here, no proof of service has been filed showing the petition and notice of hearing have been served on Respondents. Accordingly, the hearing is CONTINUED as set forth above for Petitioner to properly and timely serve the petition, notice of hearing, and any other necessary documents.” Since the March 26, 2026 hearing, Petitioner has not filed any notice of ruling, notice of hearing, or proof of service showing Respondent has received any documents filed in this case or received any notice of this hearing. Petitioner also has not filed anything demonstrating any efforts have been made to located and serve Respondents. Based on the failure to properly serve Respondents and provide notice of this hearing despite being given the opportunity to do so, the petition is DENIED WITHOUT PREJUDICE. Petitioner’s counsel is ordered to give notice of this ruling.
8.	<i>Azizi vs. Mobilitas Insurance Company</i> <i>2026-01556670</i>	Before the court is the motion of respondent Mobilitas Insurance Company (Mobilitas) to stay arbitration. As more fully set forth below, the motion is DENIED WITHOUT PREJUDICE. Initially, the court notes Mobilitas identifies itself as the respondent in this case even though it is the party who initiated these proceedings. As the party who filed the petition to open this case, Mobilitas should be identified as the petitioner in these proceedings, even though it is the one against whom relief may ultimately be sought in any arbitration. By this motion, Mobilitas seeks an order to stay arbitration proceedings pending resolution of occupational accident